

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Filed: _____

JAHLIL JAMES,

Plaintiff,

-against-

P.O. CINDY SALAS (Tax ID#966325), THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and POLICE OFFICERS "JOHN" or "JANE" DOES (1-10), identities unknown at this time,

Defendants.

INDEX NO.

Plaintiff designates New York County as the place of trial.

S U M M O N S

The basis of venue is the County in which the cause of action arose.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
November 2, 2020

ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10007

CINDY SALAS (TAX ID#966325)

32nd Precinct

250 West 135 Street

New York, New York 10030

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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-against-

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COMPLAINT

Plaintiff, by his attorneys, ASHER & ASSOCIATES, P.C., as and for his Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, JAHLIL JAMES, at all times herein mentioned was and still is a resident of the County of the Bronx, City and State of New York.
2. Defendant CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation, incorporated pursuant to the laws of the State of New York, which operates the New York City Police Department (hereinafter "NYPD"), and as such is the public employer of the Defendant officers herein.
3. Defendant POLICE OFFICER CINDY SALAS was a NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant and/or employee of Defendant CITY and within the scope of her employment.
4. Defendant POLICE OFFICERS "JOHN" or "JANE" DOES were NYPD police officers, and at all times relevant hereto, acted in that capacity as agents, servants and/or employees of Defendant CITY and within the scope of their employment.

5. On or about July 4, 2019, the defendant POLICE OFFICER CINDY SALAS was assigned to the 32ND Precinct of the NYPD at the time of the occurrences alleged in this complaint. She is being sued in both her individual and official capacities.

6. On or about July 4, 2019, the defendant POLICE OFFICERS "JOHN" or "JANE" DOES were assigned either to the PSA6, 32nd or 28th Precincts of the NYPD at the time of the occurrences alleged in this complaint. They are being sued in both their individual and official capacities.

7. At all relevant times hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities. At all relevant times hereto, Defendant CITY was responsible for making and enforcing the policies of NYPD and was acting under the color of law, to wit, under the color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

8. At all times hereinafter mentioned, the defendant NYPD had the duty to provide, supervise and control the city streets and protect the well-being and safety of the public.

9. At all relevant times, the defendant NEW YORK was responsible for the training of its police officers, and more particularly, the individually named defendants CINDY SALAS and "JOHN" and "JANE" DOES.

10. On July 4, 2019, the plaintiff JAHILIL JAMES was walking through the courtyard of the Drew Hamilton Houses after leaving his home and heading towards the grocery store on the corner of West 144 Street and 8th Avenue, New York, New York when several police officers, including the individually named Police Officer CINDY SALAS, who were assembled in the area grabbed him about his neck, arms and shoulders, attempted to choke him, twisted his left arm

behind his back, stepped on his left foot and began to punch him about the chest and left side of his body and arms until he fell face forward onto the pavement complaining that he could not breathe.

11. Thereafter, he was handcuffed, arrested and transported to the PSA6 Precinct where he was searched and then transported to the 32nd Precinct at which time the handcuffs were loosened and he was put in a holding cell for several hours.

12. On July 4, 2019, plaintiff was given a Summons by Police Officer CINDY SALAS for Disorderly Conduct and released.

13. The Summons was dismissed on or about August 22, 2019.

14. The Plaintiff is unable to identify at this time the names of any of the other individual officers involved, other than he knows that there were officers from the PSA6, 32nd and 28th Precincts at the location

15. On July 4, 2019, there were multiple police officers who were present in the courtyard, witnessed the incident and failed to intervene.

16. Upon his release from custody, Plaintiff JAHLIL JAMES went to the hospital where he was diagnosed with a fracture of the left ankle and multiple contusions and abrasions about his head, back and body.

17. On July 4, 2019, the plaintiff JAHLIL JAMES was subjected to both verbal and physical abuse by multiple members of the NYPD, including the individually named defendant SALAS.

18. On July 4, 2019, plaintiff JAHLIL JAMES was caused to suffer severe personal

injuries.

19. Prior to the commencement of this action, a notice of claim in writing was served on behalf of JAHLIL JAMES, upon THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT in accordance with Section 50-e of the General Municipal Law.

20. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of JAHLIL JAMES, upon THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT in accordance with Section 50-e of the General Municipal Law.

21. Within ninety days (90) of July 4, 2019, a notice of claim in writing was served on behalf of JAHLIL JAMES, upon THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT in accordance with Section 50-e of the General Municipal Law.

22. Prior to the commencement of this action, notice of the intention of JAHLIL JAMES to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of JAHLIL JAMES upon THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

23. Although more than thirty (30) days have elapsed since service of such notice of claim, THE CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT neglected and has refused to pay said claim or adjust same.

24. A hearing pursuant to General Municipal Law 50-h has been held.

25. This action is commenced within one (1) year and ninety (90) days from July 4, 2019, the date the accident as herein set forth occurred.as tolled pursuant to Executive Order 202.14 as extended by 202.27, 202.28, 202.38, 202.48, 202.55, 202.60 and 202.67.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JAHLIL JAMES

Pursuant to §1983 (EXCESSIVE FORCE)

26. Paragraphs 1 through 25 are hereby realleged and incorporated by reference herein.
27. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.
28. That Defendants had no legal cause or reason to use excessive force in effectuating JAHLIL JAMES's arrest or after JAHLIL JAMES was arrested and in custody.
29. That Defendants violated JAHLIL JAMES's Fourth and Fourteenth Amendment right to be free from unreasonable seizures when they used excessive force against him.
30. That at the time of the arrest or while in custody, JAHLIL JAMES did not pose a threat to the safety of the arresting officers.
31. That JAHLIL JAMES was not actively resisting arrest or attempting to evade arrest.
32. That Defendant CITY, through its officers, agents, and employees, unlawfully subjected JAHLIL JAMES to excessive force while effectuating his arrest.
33. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.
34. That by reason of Defendants acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of JAHLIL JAMES's rights,

subjected JAHLIL JAMES to excessive force while effectuating his arrest, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

35. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of JAHLIL JAMES's civil rights, including but not limited to the right to be free from the application of excessive force.

36. That upon information and belief, in 2019, Defendants and CITY had a policy or routine practice of using excessive force when effectuating arrests.

37. That upon information and belief, it was the policy and/or custom of defendant CITY to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

38. That as a result of the above described policies and customs, the officers, staff, agents and employees of defendant CITY, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

39. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of JAHLIL JAMES's rights alleged herein.

40. By reason of the foregoing, JAHLIL JAMES suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

41. The aforementioned use of excessive force in effectuating the arrest and detention of

the plaintiff by SALAS and unknown officers “JOHN” or “JANE” DOES, violated the plaintiff’s constitutional rights.

42. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

43. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of New York, and under the authority of their office as police officers for such city and county.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JAHILIL JAMES
Pursuant to State Law (EXCESSIVE FORCE)

44. Paragraphs 1 through 43 are hereby realleged and incorporated by reference herein.

45. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure.

46. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

47. That Defendants had no legal cause or reason to use excessive force in effectuating JAHILIL JAMES’s arrest or after JAHILIL JAMES was arrested and in custody.

48. That at the time of the arrest, JAHILIL JAMES did not pose a threat to the safety of the arresting officers.

49. That JAHLIL JAMES was not actively resisting arrest or attempting to evade arrest.

50. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

51. That by reason of Defendants acts and omissions, Defendants, acting under color of state law and within the scope of their authority, in gross and wanton disregard of JAHLIL JAMES's rights, subjected JAHLIL JAMES to excessive force while effectuating his arrest, in violation of the laws of the State of New York.

52. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of JAHLIL JAMES's civil rights, including but not limited to the right to be free from the application of excessive force.

53. By reason of the foregoing, JAHLIL JAMES suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JAHLIL JAMES
Pursuant to State Law (Assault and Battery)

54. Paragraphs 1 through 53 are hereby realleged and incorporated by reference herein.

55. That Defendants intended to cause harmful bodily contact to JAHLIL JAMES.

56. That Defendants, in a hostile manner, voluntarily caused JAHLIL JAMES'S injuries.

57. That Defendants' contact with JAHLIL JAMES constituted a battery in violation of the laws of the State of New York.

58. That by reason of the foregoing, JAHLIL JAMES suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A FOURTH CAUSE OF ACTION
Pursuant to §1983 (FAILURE TO INTERVENE)

59. Paragraphs 1 through 59 are hereby realleged and incorporated by reference herein.

60. That Defendants failed to intervene when Defendants knew or should have known that JAHLIL JAMES's constitutional rights were being violated.

61. That Defendants had a realistic opportunity to intervene on behalf of JAHLIL JAMES, whose constitutional rights were being violated in their presence.

62. That a reasonable person in the Defendants' position would know that JAHLIL JAMES's constitutional rights were being violated.

63. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of JAHLIL JAMES's rights, deprived JAHLIL JAMES of his liberty when they failed to intervene to protect him from Defendants' use of excessive force and cruel and unusual punishment, in violation of JAHLIL JAMES's rights pursuant to the Fourth and Eighth Amendments of the United States Constitution.

64. That upon information and belief, Defendants had a policy and /or custom of failing to intervene to protect citizens from excessive force by corrections officers. Thus, as a result of the above described policies and customs, JAHILIL JAMES was not protected from Defendants' unconstitutional actions.

65. That by reason of the foregoing, JAHILIL JAMES suffered physical and psychological injuries, traumatic stress, mental anguish, economic damages including attorney's fees.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JAHILIL JAMES
Pursuant to State Law (Negligence)

66. Paragraphs 1 through 65 are hereby realleged and incorporated by reference herein.

67. That Defendants were reckless, careless, and indifferent to JAHILIL JAMES's physical well-being while JAHILIL JAMES was in Defendants' custody.

68. That Defendants had a duty to exercise reasonable care to secure the safety of JAHILIL JAMES from injury while in Defendants' charge.

69. That Defendants breached their duty to JAHILIL JAMES when Defendants failed to exercise reasonable care to secure the safety of JAHILIL JAMES while in Defendants' charge, or when Defendants discontinued their aid or protection of JAHILIL JAMES and left JAHILIL JAMES in a worse position than when Defendants took charge of him.

70. That by the actions described above, defendants jointly and severally, negligently caused injuries, emotional distress and damage to the plaintiff.

71. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

72. As a result of the foregoing, JAHILIL JAMES was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured. All of said injuries may be permanent.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JAHILIL JAMES
Pursuant to State Law (RESPONDEAT SUPERIOR)

73. Paragraphs 1 through 72 are hereby realleged and incorporated by reference herein.

74. That Defendants were acting in furtherance of the duties owed to their employer, defendant CITY.

75. That at all times Defendants were acting within the scope of their employment.

76. That Defendant CITY was able to exercise control over Defendants activities.

That Defendant CITY is liable for Defendants actions under the doctrine of respondeat superior.

77. All of said injuries may be permanent. By reason of the foregoing, JAHILIL JAMES suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A SEVENTH CAUSE OF ACTION**ON BEHALF OF PLAINTIFF JAHLIL JAMES**

Pursuant to § 1983 (FALSE ARREST)

78. Paragraphs 1 through 77 of this complaint are hereby realleged and incorporated by reference herein.

79. That Defendants had neither valid evidence for the arrest of JAHLIL JAMES nor legal cause or excuse to seize and detain him.

80. That in detaining JAHLIL JAMES and without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the New York City Police Department under the color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely charged persons with crimes they did not commit. JAHLIL JAMES was but one of those persons.

81. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

82. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated. In addition, the City of New York had and has a policy, custom, and/or practice of detaining persons for an excessive period of time prior to arraignment.

83. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of JAHILIL JAMES's rights alleged herein.

84. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of JAHILIL JAMES's rights, subjected JAHILIL JAMES to an unlawful detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.

85. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of JAHILIL JAMES's civil rights, including but not limited to the right to be free from being falsely arrested.

86. By reason of the foregoing, JAHILIL JAMES suffered physical injuries, mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A EIGHTH CAUSE OF ACTION

ON BEHALF OF PLAINTIFF JAHILIL JAMES

(Pursuant to State Law (FALSE ARREST))

87. Paragraphs 1 through 86 of this complaint are hereby realleged and incorporated by reference herein.

88. Plaintiff was arrested, held in custody, restrained of his liberty and forced to spend hours incarcerated.

89. This arrest and detention was made without warrant or other legal process and was

unlawful, wrongful, malicious and without right in that no crime had been committed and in that there was no reason or cause for belief that plaintiff had committed any crime.

90. In doing all the acts and things aforesaid, defendants acted willfully, maliciously and without right, reason or probable cause.

91. Defendants, their agents, servants and/or employees wrongfully caused plaintiff to be arrested, jailed and charged with a crime.

92. Said false arrest and false imprisonment of plaintiff and the ensuing restraint of his liberty caused him great humiliation and as a result of which he has been damaged.

93. Prior to the arrest, plaintiff had enjoyed a good reputation in the City and State of New York.

94. The charges against plaintiff were wholly dismissed.

95. By reason of the foregoing false arrest, plaintiff's health was impaired; plaintiff suffered great mental distress, indignity and humiliation; his reputation and character were injured; his earning power permanently impaired.

96. Due to the foregoing, plaintiff is entitled to damages.

WHEREFORE, Plaintiff JAHLIL JAMES respectfully requests that judgment be entered:

1. Awarding PLAINTIFF JAHLIL JAMES compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding PLAINTIFF JAHLIL JAMES punitive damages in an amount to be determined by a jury;
3. Awarding PLAINTIFF JAHLIL JAMES interest from July 4, 2019;
4. Awarding PLAINTIFF JAHLIL JAMES reasonable attorney's fees

pursuant to 42 USC §1988; and

5. Granting such other and further relief as to this Court seems proper.

Dated: New York, New York
November 2, 2020

Roberta D. Asher

By: Roberta D. Asher
ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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POLICE DEPARTMENT and POLICE OFFICERS "JOHN" or "JANE" DOES (1-10), identities
unknown at this time,

Defendants.

SUMMONS and COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By: *Roberta D. Asher*
Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

PLEASE TAKE NOTICE
NOTICE OF
ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk
of the
within named Court on , 2020 .

NOTICE OF
SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of
the

of the within named Court, at , New York, on , 2020 , at 9:30
A.M.

Dated: